

**WYOMING RURAL PUBLIC TRANSIT PROGRAM FISCAL YEAR (FY) 2027
SUBRECIPIENT AGREEMENT BETWEEN
THE WYOMING DEPARTMENT OF TRANSPORTATION,
LOCAL GOVERNMENT COORDINATION OFFICE
AND THE
CITY OF CHEYENNE TRANSIT PROGRAM**

1. **Parties.** The parties to this Subrecipient Agreement (Agreement) are the Wyoming Department of Transportation, Local Government Coordination Office (WYDOT), whose address is: 5300 Bishop Boulevard, Cheyenne, Wyoming 82009, and the City of Cheyenne Transit Program (Subrecipient), whose address is: 322 West Lincolnway, Cheyenne, Wyoming 82001.
2. **Purpose.** This is an award of state financial assistance from WYDOT to Subrecipient. The purpose of this Agreement is to set forth the respective relationships and responsibilities of Subrecipient and WYDOT in the administration of the Wyoming Rural Public Transit Program. Subrecipient shall use state funds for Rural Public Transit Program for the purpose of operating to provide public transportation (Project) in Laramie County.

Pursuant to Wyo. Stat. §§ 24-15-101 and 24-15-102, WYDOT is authorized to distribute these program funds in accordance with the WYDOT State Management Plan, which is incorporated into this Agreement by this reference, and the Federal Transit Administration (FTA) Master Agreement, following FTA Circular 9040.1H (Rural Areas Formula Grant Programs Guidance), FTA Circular 4220.1G (Third-Party Contracting Guidance), all applicable FTA guidelines, and 2 CFR Part 200. All work covered by this Agreement shall comply with the standards of the Americans with Disabilities Act of 1990 (ADA) (42 U.S.C. § 12101 *et seq.*) and is subject to all FTA Certifications and Assurances.

WYDOT and Subrecipient desire to secure and utilize grant funds for the public transportation needs in small urban and rural areas in the State of Wyoming.

3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of this Agreement is from October 1, 2026 (Term Start Date), through December 31, 2027. Subrecipient's timeframe to complete the work under this Agreement (Budget Period) is from the Term Start Date through September 30, 2027. The Period of Performance is from the Term Start Date through December 31, 2027.
4. **Payment.**
 - A. WYDOT agrees to reimburse Subrecipient for the Project described in Section 5 below. The total reimbursement shall not exceed three hundred two thousand, eight hundred sixty-two dollars (\$302,862.00). Subrecipient agrees that it will contribute cost share from local and unrestricted federal monies in the amount of zero dollars (\$0.00). Total Project costs exceeding the Project award of three hundred two

thousand, eight hundred sixty-two dollars (\$302,862.00) (including local share) shall be borne by Subrecipient.

Subrecipient's eligible costs incurred shall be reimbursed upon receipt of an approved WYDOT reimbursement request form, which is provided in WYDOT's project management system. WYDOT requires supporting documentation for any and all submittals, including required ridership and inventory updates. WYDOT will reimburse those eligible costs based on the program guidelines for the item categories and their appropriate reimbursement ratio. Costs incurred outside of the Budget Period will not be eligible for reimbursement. Requests for reimbursement shall be submitted monthly. WYDOT may not process payment for reimbursement requests submitted more than three (3) months after the expenses were incurred. The Subrecipient shall submit the final invoice for reimbursement no later than November 14, 2027. WYDOT will make payment to Subrecipient within forty-five (45) days of receipt of a complete and approved reimbursement request pursuant to Wyo. Stat. § 16-6-602. Reimbursement shall be based on the Wyoming Sliding Scale rates as established in the current WYDOT State Management Plan. The basis for reimbursement shall be as follows:

- (i) Net Operating Deficit (Total Operating Expense – Farebox = Net Operating Deficit) is reimbursed with state funds at fifty-six and fifty-six hundredths percent (56.56%), with Local Share at forty-three and forty-four hundredths percent (43.44%) at the amounts shown below.

Net Operating Deficit	\$302,862.00
State Award (56.56%)	\$302,862.00
Local Share (43.44%)	\$0.00

- (ii) Administration is reimbursed with state funds at eighty percent (80%), with Local Share at twenty percent (20%) at the amounts shown below.

Administration	\$0.00
State Award (80%)	\$0.00
Local Share (20%)	\$0.00

- (iii) Maintenance is reimbursed with state funds at eighty percent (80%), with Local Share at twenty percent (20%) at the amounts shown below.

Maintenance	\$0.00
State Award (80%)	\$0.00
Local Share (20%)	\$0.00

Subrecipient shall initiate and prosecute to completion all actions necessary to enable Subrecipient to provide its share of the Project costs. Subrecipient shall

submit invoices in sufficient detail to ensure that reimbursements may be made in conformance with this Agreement.

- B. Fiscal Year End Accounting.** Subrecipient shall provide end-of-fiscal-year financial reporting by October 31, 2027, identifying all expenses incurred that have not yet been submitted for reimbursement. The final reimbursement request must be submitted to WYDOT by November 14, 2027. Failure to meet these deadlines may result in WYDOT rejecting reimbursement requests.
- C.** No reimbursement shall be made for work performed before the Term Start Date. Should Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, reimbursement under this Agreement may be withheld until such time as Subrecipient performs its duties and responsibilities to the satisfaction of WYDOT.
- D.** Except as otherwise provided in this Agreement, Subrecipient shall pay all costs and expenses, including travel, incurred by Subrecipient or on its behalf in connection with Subrecipient's performance and compliance with all of Subrecipient's obligations under this Agreement.
- E.** Award Identification information is included in Attachment A, State Transit Funding Award Information, which is attached to and incorporated into this Agreement by this reference.

5. Responsibilities of Subrecipient.

- A. Project Scope.** Subrecipient shall undertake and complete the Project in accordance with this Agreement and as described in its application as approved by WYDOT, which is incorporated into this Agreement by this reference.
 - (i)** Subrecipient shall utilize this grant for the operating, administration, and/or maintenance costs associated with providing public transportation in their service area.
- B.** Subrecipient shall abide by the terms described in Section 4 above and in Attachment B, Federally Required Clauses, which is attached to and incorporated into this Agreement by this reference.
- C.** Subrecipient shall submit monthly ridership and expense reports via the BlackCat system. Additionally, Subrecipient shall provide semi-annual inventory updates in BlackCat as follows:
 - (i)** October: Vehicle Condition Assessments and mileage.
 - (ii)** April: Mileage only.

D. Certifications and Assurances. Subrecipient acknowledges that they have read and agree to comply with all requirements in the current FTA Master Agreement and the current FTA Certifications and Assurances, which is incorporated into this Agreement by this reference. Subrecipient shall certify that they have read and agree to these requirements annually.

E. NTD Reporting Requirements. Provide WYDOT with all data necessary for the annual National Transit Database (NTD) Rural (Section 5311) report. This includes but is not limited to:

- (i) Total annual actual vehicle revenue miles;
- (ii) Total annual actual vehicle revenue hours; and
- (iii) Total annual unlinked passenger trips.

Data must be submitted in the format prescribed by WYDOT no later than December 31, 2027.

F. Purchase and Management of Project Property. Any purchase of Project equipment, as defined by 2 CFR § 200.1, shall be conducted by WYDOT or by the Subrecipient with prior written WYDOT approval in accordance with all relevant requirements in Attachment B.

- (i) Real Property and Federal Interest. Subrecipient shall comply with 2 CFR §§ 200.311 and 200.439 regarding the use, management, and disposition of real property.
- (ii) Use, Maintenance, and Disposition. Subrecipient agrees that all Project property shall be used solely for its intended purpose for as long as it is needed. Subrecipient shall promptly notify WYDOT if property is used in a manner substantially different from the original Project description or if it is no longer needed. Written notification from WYDOT must be received prior to any sale, transfer, or disposal of Project property.

6. Responsibilities of WYDOT. WYDOT agrees to:

A. Reimburse Subrecipient in accordance with Section 4 above.

7. **Special Provisions.** WYDOT requires subrecipients of state transit funds to comply with the same requirements imposed by the FTA for subrecipients of federal funds.
- A. **Administration of Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, *et seq.*; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.
 - B. **Assumption of Risk.** Subrecipient shall assume the risk of any loss of state funding, either administrative or program dollars, due to Subrecipient's failure to comply with state requirements. WYDOT shall notify Subrecipient of any state determination of noncompliance.
 - C. **Conflict of Interest.** Per 2 CFR § 200.112, Subrecipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
 - D. **Copyright License and Patent Rights.** Subrecipient acknowledges that the State of Wyoming, and WYDOT reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which Subrecipient purchases ownership using funds awarded under this Agreement. Subrecipient must consult with WYDOT regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.
 - E. **Emergency Management.** Subrecipient is required by WYDOT to cooperate and coordinate with Emergency Management agencies in its area during natural or man-made disasters. All FTA vehicles shall be used to transport people and/or equipment as directed by WYDOT. Subrecipient shall use its communication equipment to ensure timely evacuation of elderly and disabled people in its area.
 - F. **Environmental Policy Acts.** Subrecipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
 - G. **Human Trafficking.** This Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
 - (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or

- (iii) Uses forced labor in the performance of the award or subawards under the award.
- H. **Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Subrecipient breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.
- I. **Mandatory Disclosures and Credible Evidence.** Subrecipient must promptly disclose in writing to WYDOT all violations of federal criminal law involving fraud, bribery, or gratuity violations potentially affecting the Award. For all agreements exceeding twenty-five thousand dollars (\$25,000.00), Subrecipient must promptly notify WYDOT if it has knowledge of “credible evidence” that a Principal, Employee, Agent, or Third-Party Participant of the Subrecipient has submitted a false claim under the False Claims Act or has committed a criminal or civil violation of law involving fraud, conflict of interest, bribery, or gratuity. This notice requirement satisfies the disclosure obligations set forth in 2 CFR § 200.112 and 2 CFR § 200.113.
- J. **Monitoring Activities.** WYDOT shall have the right to monitor all activities related to this Agreement that are performed by Subrecipient or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- K. **Motor Vehicle Safety.**
 - (i) Motor Vehicle Safety Standards. The motor vehicle will comply with the Motor Vehicle Safety Standards and Pollution Requirements as established by the United States Department of Transportation.
 - (ii) Motor Vehicle Requirements. When new motor vehicles are purchased, a written certification shall be obtained from each vendor stating: “The horsepower of the vehicle is adequate for the speed, range, and terrain in which it will be required to operate and also to meet the demands of all auxiliary power equipment.”
- L. **No Finder’s Fees.** No finder’s fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.

- M. Nondiscrimination and Civil Rights.** Subrecipient shall comply with, and shall require all subcontractors at every tier to comply with, the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the ADA, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement. Subrecipient must include all relevant special provisions of this Agreement in every subcontract awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each subcontractor.
- (i) **Section 504 Accessibility and Public Participation.** In accordance with 49 CFR Part 27, Subrecipient must ensure that persons with disabilities have adequate notice and opportunity to comment on transportation service plans. Subrecipient shall certify that special efforts are being made to provide reasonable, timely transportation for eligible disabled persons.
- N. Non-Supplanting Certification.** Subrecipient hereby affirms that grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose.
- O. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to WYDOT.
- P. Prohibited Interest.** No member, officer, or employee of Subrecipient during their tenure or one (1) year thereafter shall have any interest, direct or indirect, in this Agreement or the proceeds thereof.
- Q. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for Subrecipient and related to the services and work to be performed under this Agreement, shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval of WYDOT.
- R. Records and Reports.**
- (i) Establishment and Maintenance of Accounting Records. Subrecipient shall, in accordance with WYDOT requirements, establish and maintain separate accounts for the Project, either independently or within its existing accounting system, to be known as the Project Account.

- (ii) Documentation of Project Costs. All charges to the Project Account shall be supported by properly executed invoices, contracts, or vouchers evidencing in proper detail the nature and propriety of the charges, in accordance with WYDOT rules and regulations. Copies and/or supporting documentation of such invoices, contracts, or vouchers must be included with monthly billing statements to cover all charges submitted for payment. The original documentation shall be maintained by Subrecipient in the Project file and must be available to WYDOT upon request.
- (iii) Checks, Orders, and Vouchers. Any check or order drawn by Subrecipient with respect to any item which is or will be chargeable against the Project Account will be drawn only in accordance with a properly signed voucher on file with the office of Subrecipient stating in proper detail the purpose for which such check or order is drawn. All checks, invoices, contracts, vouchers, orders, or other accounting documents pertaining in whole or in part to the Project shall be clearly identified, readily accessible, and, to the extent feasible, kept separate and apart from all other such documents.
- (iv) Reports. Subrecipient shall advise WYDOT regarding Project progress through meetings and interim reports as required. Every monthly reimbursement request must be accompanied by ridership data on approved WYDOT forms. WYDOT will not process payments without this data. Subrecipient shall maintain an annual inventory of all vehicles and equipment purchased under the Project.
- (v) Retention of Records. In accordance with 2 CFR § 200.334 and FTA Circular 9040.1H, Subrecipient shall maintain all Project-related records, including financial reports, ridership data, maintenance logs, and procurement files, for a period of six (6) years following the date of the submission of the final expenditure report, or for three (3) years after the final disposition (sale, transfer, or disposal) of a capital asset, whichever is longer. If any litigation, claim, or audit is started before the expiration of this period, the records must be retained until all findings involving the records have been resolved and final action has been taken by WYDOT.

S. Safety Jurisdiction. WYDOT requires that all subrecipients operate their service in a safe manner and not allow any conditions to develop that create a serious hazard of death or injury. Subrecipient shall comply with all safety training mandates specified in the WYDOT State Management Plan.

- (i) Required Courses. All transit operators (drivers) must complete the state-authorized Transportation Safety Institute (TSI) training course, or a WYDOT approved equivalent program, prior to operating vehicles in revenue service. Drivers must also complete mandatory ADA compliance

training and any additional technical or safety training programs on a recurrent basis as specified by the WYDOT State Management Plan.

- (a) Records Management. Subrecipient shall maintain independent employee training records and ensure current training data is provided to the Wyoming Public Transit Association (WYTRANS) for centralized filing.
 - (b) Notification. Subrecipient is responsible for notifying WYTRANS of all employee training needs to maintain compliance.
 - (c) Enforcement. Failure to correct safety violations or meet training mandates may result in the withholding of state financial assistance.
- (ii) Drug and Alcohol Program. Subrecipient shall establish and implement a drug and alcohol testing program that complies with 49 CFR Part 655 and 49 CFR Part 40.
 - (a) Policy. Subrecipient shall maintain a written anti-drug and alcohol misuse policy and ensure that all covered employees performing safety-sensitive functions (including operation and maintenance of the Project vehicle) are subjected to pre-employment, reasonable suspicion, random, and post-accident testing.
 - (b) Reporting. Subrecipient shall submit annual reports via the Drug and Alcohol Management Information System (DAMIS) by March 15 of each year.
- (iii) Accident Notification. Subrecipient shall notify WYDOT within two (2) hours of any “Accident” as defined by FTA guidance.
 - (a) Definition. An accident includes any event involving the Project vehicle that results in a loss of life, a serious injury requiring immediate medical transportation away from the scene, or a collision resulting in a vehicle being towed from the scene.
 - (b) Cooperation. Subrecipient shall cooperate fully with any subsequent accident investigations conducted by WYDOT, the FTA, or the National Transportation Safety Board (NTSB).

T. Suspension and Debarment. By signing this Agreement, Subrecipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving state financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Subrecipient agrees to notify WYDOT by

certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving state funds during the term of this Agreement.

8. General Provisions.

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. Subrecipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- D. Audit and Access to Records.** WYDOT and its representatives shall have access to any books, documents, papers, electronic data, and records of Subrecipient which are pertinent to this Agreement. Subrecipient shall immediately, upon receiving written instruction from WYDOT, provide to any independent auditor accountant all books, documents, papers, electronic data, and records of Subrecipient which are pertinent to this Agreement. Subrecipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by WYDOT. The rights of access in this section are not limited to the required retention period but shall last as long as the records are retained by the Subrecipient. Subrecipient shall promptly, but in no case later than thirty (30) days following a written request from WYDOT, provide all requested records to the authorized representative or independent auditor.
- E. Availability of Funds.** Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT shall notify Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No

penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.

- F. Award of Related Agreements.** WYDOT may award supplemental or successor contracts for work related to this Agreement or may award contracts to other subrecipients for work related to this Agreement. Subrecipient shall cooperate fully with other subrecipients and WYDOT in all such cases.
- G. Certificate of Good Standing.** Subrecipient shall provide to WYDOT a Certificate of Good Standing from the Wyoming Secretary of State, or other proof that Subrecipient is authorized to conduct business in the State of Wyoming, if required, before performing work under this Agreement. Subrecipient shall ensure that annual filings and corporate taxes due and owing to the Secretary of State's office are up-to-date before signing this Agreement.
- H. Compliance with Laws.** Subrecipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- I. Confidentiality of Information.** All documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by Subrecipient in the performance of this Agreement shall be kept confidential by Subrecipient unless written permission is granted by WYDOT for its release. If and when Subrecipient receives a request for information subject to this Agreement, Subrecipient shall notify WYDOT within ten (10) days of such request and shall not release such information to a third party unless directed to do so by WYDOT.
- J. Entirety of Agreement.** This Agreement, consisting of sixteen (16) pages; Attachment A, State Transit Funding Award Information, consisting of one (1) page; Attachment B, Federally Required Clauses, consisting of twenty-four (24) pages; the WYDOT State Management Plan; the Subrecipient's application; and the Certifications and Assurances, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- K. Ethics.** Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Subrecipient's profession.
- L. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein.

Any extension of this Agreement shall be initiated by WYDOT and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.

- M. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- N. Indemnification.** Subrecipient shall release, indemnify, and hold harmless the State, WYDOT, and their officers, agents, and employees from any and all claims, suits, liabilities, court awards, damages, costs, attorneys' fees, and expenses arising out of Subrecipient's failure to perform any of Subrecipient's duties and obligations hereunder or in connection with the negligent performance of Subrecipient's duties or obligations, including, but not limited to, any claims, suits, liabilities, court awards, damages, costs, attorneys' fees, and expenses arising out of Subrecipient's negligence or other tortious conduct.
- O. Independent Contractor.** Subrecipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, Subrecipient shall be free from control or direction over the details of the performance of services under this Agreement. Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by Subrecipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or WYDOT or to incur any obligation of any kind on behalf of the State of Wyoming or WYDOT. Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of Subrecipient or Subrecipient's agents or employees as a result of this Agreement.

- P. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- Q. Notice of Sale or Transfer.** Subrecipient shall provide WYDOT with notice of any sale, transfer, merger, or consolidation of the assets of Subrecipient. Such notice shall be provided in accordance with the notices provision of this Agreement and, when possible and lawful, in advance of the transaction. If WYDOT determines that the sale, transfer, merger, or consolidation is not consistent with the continued satisfactory performance of Subrecipient's obligations under this Agreement, then WYDOT may, at its discretion, terminate or renegotiate the Agreement.
- R. Ownership and Return of Documents and Information.** WYDOT is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by Subrecipient in the performance of this Agreement. Upon termination of services, for any reason, Subrecipient agrees to return all such original and derivative information and documents to WYDOT in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers. Upon WYDOT's verified receipt of such information, Subrecipient agrees to physically and electronically destroy any residual WYDOT-owned data, regardless of format, and any other storage media or areas containing such information. Subrecipient agrees to provide written notice to WYDOT confirming the destruction of any such residual WYDOT-owned data.
- S. Patent or Copyright Protection.** Subrecipient recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by Subrecipient or its contractors will violate any such restriction. Subrecipient shall defend and indemnify WYDOT for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- T. Prior Approval.** This Agreement shall not be binding upon either party and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- U. Insurance Requirements.** Subrecipient is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the

Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, *et seq.*, and shall provide a letter verifying its participation in the WARM or LGLP to WYDOT.

- V. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- W. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and WYDOT expressly reserve sovereign immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as sovereigns. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to sovereign immunity shall be construed in favor of sovereign immunity.
- X. Taxes.** Subrecipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- Y. Termination of Agreement.** This Agreement may be terminated, without cause, by WYDOT upon thirty (30) days' written notice. This Agreement may be terminated by WYDOT immediately for cause if Subrecipient fails to perform in accordance with the terms of this Agreement.
- Z. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- AA. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- BB. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- CC. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.

DD. Counterparts. This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by Subrecipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

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9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

WYDOT:

Wyoming Department of Transportation, Local Government Coordination Office

Brian Olsen, P.E., Assistant Chief Engineer,
Engineering and Planning

Date

ATTEST:

Kimberly Chapman, Secretary
Transportation Commission of Wyoming



Date

SUBRECIPIENT:

City of Cheyenne Transit Program

Signature

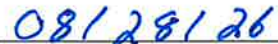
Date

Print Name & Title

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

 #258778

Nicholas T. Garcia, Assistant Attorney General



Date

Attachment A
State Transit Funding Award Information

State Transit Funding Award Information	
Subrecipient Name: City of Cheyenne	Subrecipient Unique Entity Identifier (UEI): KURKMKZUFMY2
Period of Performance Start and End Date: October 1, 2026, through December 31, 2027	Budget Period Start and End Date: October 1, 2026, through September 30, 2027
Total Project Award Including Local Share: \$302,862.00	State Award this Agreement: \$302,862.00
Awarding Name: Wyoming Rural Public Transit	Awarding Agency: Wyoming Department of Transportation (WYDOT)
Subrecipient Contact: Erin Johnson Phone: 307-637-6384 Email: ejohnson@cheyennecity.org	WYDOT Program Manager: Brandi Miller Telephone: 307-777-4438 Email: brandi.miller1@wyo.gov
Subrecipient County: Laramie	WYDOT Contact for Confirmation of Funds: Telephone: 307-777-4434 Email: dotrevenue@wyo.gov
Project Name: Rural Public Transit Program	Indirect Cost Rate (ICAP): Not Applicable
Project No.: FT27141	Agreement No.: RPT-27-141

Attachment B

Federally Required Clauses

1. Access to Records and Reports.

- A. Record Retention.** The Subrecipient will retain, and will require its subcontractors of all tiers to retain, complete, and keep readily accessible records related in whole or in part to the Agreement, including, but not limited to, data, documents, reports, statistics, leases, subcontracts, arrangements, other third party contracts of any type, and supporting materials related to those records.
- B. Retention Period.** The Subrecipient agrees to comply with the record retention requirements in accordance with 2 CFR § 200.334. The Subrecipient shall maintain all books, records, accounts, and reports required under this Agreement for a period of not less than three (3) years after the date of termination or expiration of this Agreement, except in the event of litigation or settlement of claims arising from the performance of this Agreement, in which case records shall be maintained until the disposition of all such litigation, appeals, claims, or exceptions related thereto.
- C. Access to Records.** The Subrecipient agrees to provide sufficient access to the Federal Transit Administration (FTA) and its contractors to inspect and audit records and information related to the performance of this Agreement in accordance with 2 CFR § 200.337.
- D. Access to the Sites of Performance.** The Subrecipient agrees to permit the FTA and its contractors access to the sites of performance under this Agreement in accordance with 2 CFR § 200.337.

2. Air Pollution and Fuel Economy.

Each third party contract to acquire rolling stock must include provisions to ensure compliance with applicable Federal air pollution control and fuel economy regulations, such as Environmental Protection Agency (EPA) regulations, “Control of Air Pollution from Mobile Sources,” 40 CFR Part 85; EPA regulations, “Control of Air Pollution from New and In-Use Motor Vehicles and New and In-Use Motor Vehicle Engines,” 40 CFR Part 86; and EPA regulations, “Fuel Economy and Greenhouse Gas Exhaust Emissions of Motor Vehicles,” 40 CFR Part 600.

3. Americans with Disabilities Act (ADA).

The Subrecipient agrees to comply with all applicable requirements of Section 504 of the Rehabilitation Act of 1973, as amended, 29 U.S.C. § 794, which prohibits discrimination on the basis of handicaps, with the Americans with Disabilities Act of 1990 (ADA), as amended, 42 U.S.C. §§ 12101 *et seq.*, which requires that accessible facilities and services be made available to persons with disabilities, including any subsequent amendments to

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that Act, and with the Architectural Barriers Act of 1968, as amended, 42 U.S.C. §§ 4151 *et seq.*, which requires that buildings and public accommodations be accessible to persons with disabilities, including any subsequent amendments to that Act. In addition, the Subrecipient agrees to comply with any and all applicable requirements issued by the FTA, United States Department of Transportation (USDOT), United States Department of Justice (DOJ), United States General Services Administration (U.S. GSA), United States Equal Employment Opportunity Commission (EEOC), United States Federal Communications Commission (FCC), any subsequent amendments thereto, and any other nondiscrimination statute(s) that may apply to the Project.

4. Buy America Requirements.

The Subrecipient agrees to comply with 49 U.S.C. 5323(j) and 49 CFR Part 661 and 2 CFR §200.322 Domestic preferences for procurements, which provide that Federal funds may not be obligated unless all steel, iron, and manufactured products used in FTA funded projects are produced in the United States, unless a waiver has been granted by FTA or the product is subject to a general waiver. General waivers are listed in 49 CFR § 661.7.

Construction materials used in the Project are subject to the domestic preference requirement of the Build America, Buy America Act, Pub. L. 117-58, div. G, tit. IX, §§ 70911 – 70927 (2021), as implemented by the U.S. Office of Management and Budget, USDOT, and FTA. The Subrecipient acknowledges that this Agreement is neither a waiver of § 70914(a) nor a finding under § 70914(b).

Separate requirements for rolling stock are set out at 49 U.S.C. 5323(j)(2)(C), 49 U.S.C. § 5323(u), and 49 CFR § 661.11.

The bidder or offeror must submit to the Subrecipient the appropriate Buy America certification. Bids or offers that are not accompanied by a completed Buy America certification will be rejected as nonresponsive. For more information, please see the FTA's Buy America webpage at: <https://www.transit.dot.gov/buyamerica>.

5. Restrictions on Lobbying.

A. Conditions on use of funds.

- (i) No appropriated funds may be expended by the recipient of a Federal contract, grant, loan, or cooperative agreement to pay any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with any of the following covered Federal actions: the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal,

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amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.

- (ii) Each person who requests or receives from an agency a Federal contract, grant, loan, or cooperative agreement shall file with that agency a certification that the person has not made, and will not make, any payment prohibited by paragraph (i) of this section.
- (iii) Each person who requests or receives from an agency a commitment providing for the United States to insure or guarantee a loan shall file with that agency a disclosure form, whether that person has made or has agreed to make any payment to influence or attempt to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with that loan insurance or guarantee.

B. Certification and disclosure.

- (i) Each bidder shall file a certification and a disclosure form, if required, with each submission that initiates agency consideration of such bidder for:
 - (a) Award of a Federal contract, grant, or cooperative agreement exceeding one hundred thousand dollars (\$100,000.00); or
 - (b) An award of a Federal loan or a commitment providing for the United States to insure or guarantee a loan exceeding one hundred fifty thousand dollars (\$150,000.00).
- (ii) Each person shall file a certification and a disclosure form, if required, upon receipt by such person of:
 - (a) A Federal contract, grant, or cooperative agreement exceeding one hundred thousand dollars (\$100,000.00); or
 - (b) A Federal loan or a commitment providing for the United States to insure or guarantee a loan exceeding one hundred fifty thousand dollars (\$150,000.00).

Unless such person previously filed a certification and a disclosure form, if required, under paragraph (i) of this section.

- (iii) Each person shall file a disclosure form at the end of each calendar quarter in which there occurs any event that requires disclosure or that materially affects the accuracy of the information contained in any disclosure form previously filed by such person under paragraphs (i) or (ii) of this section.

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An event that materially affects the accuracy of the information reported includes:

- (a) A cumulative increase of twenty-five thousand dollars (\$25,000.00) or more in the amount paid or expected to be paid for influencing or attempting to influence a covered Federal action; or
 - (b) A change in the person(s) or individual(s) influencing or attempting to influence a covered Federal action; or
 - (c) A change in the officer(s), employee(s), or Member(s) contacted to influence or attempt to influence a covered Federal action.
- (iv) Any person who requests or receives from a person referred to in paragraphs (i) or (ii) of this section:
 - (a) A subcontract exceeding one hundred thousand dollars (\$100,000.00) at any tier under a Federal contract;
 - (b) A subgrant, contract, or subcontract exceeding one hundred thousand dollars (\$100,000.00) at any tier under a Federal grant;
 - (c) A contract or subcontract exceeding one hundred thousand dollars (\$100,000.00) at any tier under a Federal loan exceeding one hundred fifty thousand dollars (\$150,000.00); or
 - (d) A contract or subcontract exceeding one hundred thousand dollars (\$100,000.00) at any tier under a Federal cooperative agreement,

Shall file a certification and a disclosure form, if required, to the next tier above.
- (v) All disclosure forms, but not certifications, shall be forwarded from tier to tier until received by the person referred to in paragraphs (i) or (ii) of this section. That person shall forward all disclosure forms to the agency.
- (vi) Any certification or disclosure form filed under paragraph (iv) of this section shall be treated as a material representation of fact upon which all receiving tiers shall rely. All liability arising from an erroneous representation shall be borne solely by the tier filing that representation and shall not be shared by any tier to which the erroneous representation is forwarded. Submitting an erroneous certification or disclosure constitutes a failure to file the required certification or disclosure, respectively. If a person fails to file a required certification or disclosure, the United States

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may pursue all available remedies, including those authorized by section 1352, Title 31, U.S. Code.

- (vii) For awards and commitments in process prior to December 23, 1989, but not made before that date, certifications shall be required at award or commitment, covering activities occurring between December 23, 1989, and the date of award or commitment. However, for awards and commitments in process prior to the December 23, 1989, effective date of these provisions, but not made before December 23, 1989, disclosure forms shall not be required at time of award or commitment but shall be filed within thirty (30) days.
- (viii) No reporting is required for an activity paid for with appropriated funds if that activity is allowable under either Subpart B or C of 2 CFR Part 200.

6. Charter Service.

- A. The Subrecipient agrees to comply with 49 U.S.C. §§ 5323(d) and 5323(r), and 49 CFR Part 604, which provides that recipients and subrecipients of FTA assistance are prohibited from providing charter service using federally funded equipment or facilities if there is at least one (1) private charter operator willing and able to provide the service, except as permitted under:
 - (i) Federal transit laws, specifically 49 U.S.C. § 5323(d);
 - (ii) FTA regulations, “Charter Service,” 49 CFR Part 604;
 - (iii) Any other federal Charter Service regulations; or
 - (iv) Federal guidance, except as FTA determines otherwise in writing.
- B. The Subrecipient agrees that if it engages in a pattern of violations of FTA’s Charter Service regulations, FTA may require corrective measures or impose remedies on it. These corrective measures and remedies may include:
 - (i) Barring it, or any subcontractor operating public transportation under its award that has provided prohibited charter service, from receiving federal assistance from FTA;
 - (ii) Withholding an amount of federal assistance as provided by Appendix D to Part 604 of FTA’s Charter Service regulations; or
 - (iii) Any other appropriate remedy that may apply.

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- C. The Subrecipient should also include the substance of this clause in each subcontract that may involve operating public transit services.

7. Civil Rights Laws and Regulations.

- A. **Federal Equal Employment Opportunity (EEO) Requirements.** These include, but are not limited to:
- (i) Nondiscrimination in Federal Public Transportation Programs. 49 U.S.C. § 5332, covering projects, programs, and activities financed under 49 U.S.C. Chapter 53, prohibits discrimination on the basis of race, color, religion, national origin, sex (including sexual orientation and gender identity), disability, or age, and prohibits discrimination in employment or business opportunity.
 - (ii) Prohibition against Employment Discrimination. Title VII of the Civil Rights Act of 1964, as amended, and 42 U.S.C. § 2000e, prohibit discrimination in employment on the basis of race, color, religion, sex, or national origin.
- B. **Nondiscrimination on the Basis of Sex.** Title IX of the Education Amendments of 1972, as amended, 20 U.S.C. § 1681 *et seq.* and implementing Federal regulations, “Nondiscrimination on the Basis of Sex in Education Programs or Activities Receiving Federal Financial Assistance,” 49 CFR Part 25 prohibit discrimination on the basis of sex.
- C. **Nondiscrimination on the Basis of Age.** The “Age Discrimination Act of 1975,” as amended, 42 U.S.C. § 6101 *et seq.*, and Department of Health and Human Services implementing regulations, “Nondiscrimination on the Basis of Age in Programs or Activities Receiving Federal Financial Assistance,” 45 CFR Part 90, prohibit discrimination by participants in federally assisted programs against individuals on the basis of age. The Age Discrimination in Employment Act (ADEA), 29 U.S.C. § 621 *et seq.*, and EEOC implementing regulations, “Age Discrimination in Employment Act,” 29 CFR Part 1625, also prohibit employment discrimination against individuals age 40 and over on the basis of age.
- D. **Federal Protections for Individuals with Disabilities.** The ADA, 42 U.S.C. § 12101 *et seq.*, prohibits discrimination against qualified individuals with disabilities in programs, activities, and services, and imposes specific requirements on public and private entities. Third party contractors must comply with their responsibilities under Titles I, II, III, IV, and V of the ADA in employment, public services, public accommodations, telecommunications, and other provisions, many of which are subject to regulations issued by other Federal agencies.

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8. Civil Rights and Equal Opportunity.

WYDOT is an Equal Opportunity Employer. As such, WYDOT agrees to comply with all applicable Federal civil rights laws and implementing regulations. Apart from inconsistent requirements imposed by Federal laws or regulations, WYDOT agrees to comply with the requirements of 49 U.S.C. § 5323(h) (3) by not using any Federal assistance awarded by FTA to support procurements using exclusionary or discriminatory specifications. Under this Agreement, the Subrecipient shall at all times comply with the following requirements and shall include these requirements in each subcontract entered into as part thereof.

- A. Nondiscrimination.** In accordance with Federal transit law at 49 U.S.C. § 5332, the Subrecipient agrees that it will not discriminate against any employee or applicant for employment because of race, color, religion, national origin, sex, disability, or age. In addition, the Subrecipient agrees to comply with applicable Federal implementing regulations and other implementing requirements FTA may issue.
- B. Race, Color, Religion, National Origin, Sex.** In accordance with Title VII of the Civil Rights Act, as amended, 42 U.S.C. § 2000e *et seq.*, and Federal transit laws at 49 U.S.C. § 5332, the Subrecipient agrees to comply with all applicable equal employment opportunity requirements of U.S. DOL regulations, “Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor,” 41 CFR Chapter 60, and the Executive Order No. 11246, “Equal Employment Opportunity in Federal Employment,” September 24, 1965, 42 U.S.C. § 2000e note, as amended by any later Executive Order that amends or supersedes it, referenced in 42 U.S.C. § 2000e note. The Subrecipient agrees to take affirmative action to ensure that applicants are employed, and that employees are treated during employment, without regard to their race, color, religion, national origin, or sex (including sexual orientation and gender identity). Such action shall include, but not be limited to, the following: employment, promotion, demotion or transfer, recruitment or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training, including apprenticeship. In addition, the Subrecipient agrees to comply with any implementing requirements FTA may issue.
- C. Nondiscrimination, Merit-Based Opportunity, and Material Certification.** In accordance with Title VII of the Civil Rights Act of 1964, as amended (42 U.S.C. § 2000e *et seq.*), and Federal transit laws at 49 U.S.C. § 5332, the Subrecipient agrees to comply with all applicable statutory federal anti-discrimination laws. Pursuant to Executive Order 14173 (“Ending Illegal Discrimination and Restoring Merit-Based Opportunity”) and U.S. Department of Transportation Class Deviation No. 2025-01, all contractual requirements related to the revoked Executive Order 11246 and associated affirmative action compliance programs under 41 CFR Chapter 60 are rescinded and inapplicable to this contract.

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The Subrecipient agrees that employment, procurement, and contracting practices under this Agreement shall be based strictly on individual merit, aptitude, and qualifications. The Subrecipient shall not consider or utilize preferences based on race, color, religion, sex (including sexual orientation), or national origin. The Subrecipient certifies that it does not operate any programs promoting Diversity, Equity, and Inclusion (DEI) that violate applicable Federal anti-discrimination laws. The Subrecipient acknowledges and agrees that full compliance with these statutory anti-discrimination provisions is a material condition of eligibility for payment under this federally assisted award.

- D. Age.** In accordance with the Age Discrimination in Employment Act, 29 U.S.C. §§ 621-634, U.S. EEOC regulations, “Age Discrimination in Employment Act,” 29 CFR Part 1625, the Age Discrimination Act of 1975, as amended, 42 U.S.C. § 6101 *et seq.*, U.S. Health and Human Services regulations, “Nondiscrimination on the Basis of Age in Programs or Activities Receiving Federal Financial Assistance,” 45 CFR Part 90, and Federal transit law at 49 U.S.C. § 5332, the Subrecipient agrees to refrain from discrimination against present and prospective employees for reason of age. In addition, the Subrecipient agrees to comply with any implementing requirements FTA may issue.
- E. Disabilities.** In accordance with Section 504 of the Rehabilitation Act of 1973, as amended, 29 U.S.C. § 794, the ADA, as amended, 42 U.S.C. § 12101 *et seq.*, the Architectural Barriers Act of 1968, as amended, 42 U.S.C. § 4151 *et seq.*, and Federal transit law at 49 U.S.C. § 5332, the Subrecipient agrees that it will not discriminate against individuals on the basis of disability. In addition, the Subrecipient agrees to comply with any implementing requirements FTA may issue.
- F. Promoting Free Speech and Religious Liberty.** The Subrecipient shall ensure that Federal funding is expended in full accordance with the U.S. Constitution, Federal Law, and statutory and public policy requirements: including, but not limited to, those protecting free speech, religious liberty, public welfare, the environment, and prohibiting discrimination.

9. Clean Air Act and Federal Water Pollution Control Act.

The Subrecipient agrees to comply with all applicable standards, orders, or regulations issued pursuant to the Clean Air Act (42 U.S.C. § 7401-7671q) and the Federal Water Pollution Control Act, as amended (33 U.S.C. § 1251-1387). Violations must be reported to FTA and the Regional Office of the EPA. The following applies for contracts of amounts in excess of one hundred fifty thousand dollars (\$150,000.00):

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A. Clean Air Act. The Subrecipient agrees to:

- (i) Comply with all applicable standards, orders, or regulations issued pursuant to the Clean Air Act, as amended, 42 U.S.C. § 7401 *et seq.*
- (ii) Report each violation to WYDOT and understands and agrees that WYDOT will, in turn, report each violation as required to assure notification to the FTA, Federal Emergency Management Agency, and the appropriate EPA Regional Office.
- (iii) Include these requirements in each subcontract exceeding one hundred fifty thousand dollars (\$150,000.00) financed in whole or in part with Federal assistance provided by the FTA.

B. Federal Water Pollution Control Act. The Subrecipient agrees to:

- (i) Comply with all applicable standards, orders, or regulations issued pursuant to the Federal Water Pollution Control Act, as amended, 33 U.S.C. § 1251 *et seq.*
- (ii) Report each violation to WYDOT, and understands and agrees that WYDOT will, in turn, report each violation as required to assure notification to the FTA, Federal Emergency Management Agency, and the appropriate EPA Regional Office.
- (iii) Include these requirements in each subcontract exceeding one hundred fifty thousand dollars (\$150,000.00) financed in whole or in part with Federal assistance provided by the FTA.

10. Conformance with Intelligent Transportation Systems (ITS) National Architecture.

ITS projects shall conform to the National ITS Architecture and standards pursuant to 23 CFR Part 940. Conformance with the National ITS Architecture is interpreted to mean the use of the National ITS Architecture to develop a regional ITS architecture in support of integration and the subsequent adherence of all ITS projects to that regional ITS architecture. Development of the regional ITS architecture should be consistent with the transportation planning process for Statewide and Metropolitan Transportation Planning (49 CFR Parts 613 and 621).

11. Contract Work Hours and Safety Standards Act.

- A. Applicability.** This requirement applies to all FTA grant and cooperative agreement programs.

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- B.** Where applicable (see 40 U.S.C. § 3701), all contracts awarded by the Subrecipient entity in excess of one hundred thousand dollars (\$100,000.00) that involve the employment of mechanics or laborers must include a provision for compliance with 40 U.S.C. §§ 3702 and 3704, as supplemented by U.S. DOL regulations at 29 CFR Part 5. See 2 CFR Part 200, Appendix II.
- C.** Under 40 U.S.C. § 3702, each contractor must be required to compute the wages of every mechanic and laborer on the basis of a standard work week of forty (40) hours. Work in excess of the standard work week is permissible provided that the worker is compensated at a rate of not less than one and one-half (1.5) times the basic rate of pay for all hours worked in excess of forty (40) hours in the work week.
- D.** The requirements of 40 U.S.C. § 3704 are applicable to construction work and provide that no laborer or mechanic must be required to work in surroundings or under working conditions which are unsanitary, hazardous, or dangerous. These requirements do not apply to the purchases of supplies, materials, articles ordinarily available on the open market, contracts for transportation, or transmission of intelligence.
- E.** The regulation at 29 CFR § 5.5(b) provides the required contract clause concerning compliance with the Contract Work Hours and Safety Standards Act:

 - (i)** Compliance with the Contract Work Hours and Safety Standards Act.

 - (a)** Overtime requirements. No contractor or subcontractor contracting for any part of the contract work which may require or involve the employment of laborers or mechanics shall require or permit any such laborer or mechanic in any workweek in which he or she is employed on such work to work in excess of forty (40) hours in such workweek unless such laborer or mechanic receives compensation at a rate not less than one and a one-half (1.5) times the basic rate of pay for all hours worked in excess of forty (40) hours in such workweek.
 - (b)** Violation; liability for unpaid wages; liquidated damages. In the event of any violation of the clause set forth in paragraph (a) of this section, the contractor and any subcontractor responsible therefore shall be liable for the unpaid wages. In addition, such contractor and subcontractor shall be liable to the United States (in the case of work done under contract for the District of Columbia or territory, to such District or to such territory), for liquidated damages. Such liquidated damages shall be computed with respect to each individual laborer or mechanic, including watchmen and guards, employed in violation of the clause set forth in paragraph (a) of this section, in the sum of

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ten dollars (\$10.00) for each calendar day on which such individual was required or permitted to work in excess of the standard workweek of forty (40) hours without payment of the overtime wages required by the clause set forth in paragraph (a) of this section.

- (c) Withholding for unpaid wages and liquidated damages. The Subrecipient shall upon its own action or upon written request of an authorized representative of the Department of Labor withhold or cause to be withheld, from any moneys payable on account of work performed by the contractor or subcontractor under any such contract or any other Federal contract with the same prime contractor, or any other federally-assisted contract subject to the Contract Work Hours and Safety Standards Act, which is held by the same prime contractor, such sums as may be determined to be necessary to satisfy any liabilities of such contractor or subcontractor for unpaid wages and liquidated damages as provided in the clause set forth in paragraph (b) of this section.
- (d) Subcontracts. The contractor or subcontractor shall insert in any subcontracts the clauses set forth in paragraph (a) through (d) of this section and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. The prime contractor shall be responsible for compliance by any subcontractor or lower tier subcontractor with the clauses set forth in paragraphs (a) through (d) of this section.

12. Debarment and Suspension.

The Subrecipient shall comply and facilitate compliance with USDOT regulations, “Nonprocurement Suspension and Debarment,” 2 CFR Part 1200, which adopts and supplements the U.S. Office of Management and Budget (U.S. OMB) “Guidelines to Agencies on Governmentwide Debarment and Suspension (Nonprocurement),” 2 CFR Part 180. These provisions apply to each contract at any tier of twenty-five thousand dollars (\$25,000.00) or more, and to each contract at any tier for a federally required audit (irrespective of the contract amount), and to each contract at any tier that must be approved by an FTA official irrespective of the contract amount. As such, the Subrecipient shall verify that its principals, affiliates, and subcontractors are eligible to participate in this federally funded contract and are not presently declared by any Federal department or agency to be:

- A. Debarred from participation in any federally assisted award;
- B. Suspended from participation in any federally assisted award;

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- C. Proposed for debarment from participation in any federally assisted award;
- D. Declared ineligible to participate in any federally assisted award;
- E. Voluntarily excluded from participation in any federally assisted award; or
- F. Disqualified from participation in any federally assisted award.

By executing this Agreement, the Subrecipient certifies as follows:

The certification in this clause is a material representation of fact relied upon by WYDOT. If it is later determined by WYDOT that the Subrecipient knowingly rendered an erroneous certification, in addition to remedies available to WYDOT, the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment. The Subrecipient agrees to comply with the requirements of 2 CFR Part 180, Subpart C, as supplemented by 2 CFR Part 1200, throughout the term of the Agreement. The Subrecipient further agrees to include a provision requiring such compliance in its lower-tier covered transactions.

13. Disadvantaged Business Enterprise (DBE).

It is the policy of WYDOT and the USDOT that DBEs, as defined herein and in the Federal regulations published at 49 CFR Part 26, shall have an equal opportunity to participate in USDOT-assisted contracts.

The Subrecipient shall not discriminate on the basis of race, color, national origin, or sex in the performance of this Agreement. The Subrecipient shall carry out applicable requirements of 49 CFR Part 26 in the award and administration of USDOT-assisted contracts. Failure by the Subrecipient to carry out these requirements is a material breach of this Agreement, which may result in the termination of this Agreement or such other remedy as WYDOT deems appropriate, which may include, but is not limited to:

- A. Withholding monthly progress payments;
- B. Assessing sanctions;
- C. Liquidated damages; and/or
- D. Disqualifying the Subrecipient from future bidding as non-responsible. 49 CFR § 26.13(b).

Prime contractors are required to pay subcontractors for satisfactory performance of their contracts no later than thirty (30) days from receipt of each payment WYDOT makes to the prime contractor. 49 CFR § 26.29(a).

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Finally, for contracts with defined DBE contract goals, each FTA Recipient must include in each prime contract a provision stating that the Subrecipient shall utilize the specific DBEs listed unless the Subrecipient obtains WYDOT's written consent; and that, unless WYDOT's consent is provided, the Subrecipient shall not be entitled to any payment for work or material unless it is performed or supplied by the listed DBE. 49 CFR § 26.53(f) (1).

14. Energy Conservation.

The Subrecipient agrees to comply with mandatory standards and policies relating to energy efficiency, which are contained in the State energy conservation plan issued in compliance with the Energy Policy and Conservation Act (42 U.S.C. § 6201).

15. Federal Tax Liability and Recent Felony Convictions.

A. The Subrecipient certifies that it:

- (i) Does not have any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
- (ii) Was not convicted of the felony criminal violation under any Federal law within the preceding twenty-four (24) months.

If the Subrecipient cannot so certify, WYDOT will refer the matter to FTA and not enter into any third-party agreement with the Subrecipient without FTA's written approval.

B. Flow-Down. The Subrecipient agrees to require the contractor to flow this requirement down to participants at all lower tiers, without regard to the value of any subagreement.

16. Incorporation of Federal Transit Administration (FTA) Terms.

The provisions within include, in part, certain Standard Terms and Conditions required under the Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards (2 CFR § 200), whether or not expressly set forth in the preceding Agreement provisions. All contractual provisions required by USDOT, detailed in 2 CFR Part 200 or as amended by 2 CFR part 1201, or the most recent version of FTA Circular 4220.1 are hereby incorporated into this Agreement by this reference. Anything to the contrary herein notwithstanding, all mandated terms shall be deemed to control in the event of a conflict with other provisions contained in this Agreement. The Subrecipient shall not

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perform any act, fail to perform any act, or refuse to comply with any request which would cause a violation of the FTA terms and conditions.

17. No Government Obligation to Third Parties.

The Subrecipient, its contractor, and subcontractor(s) acknowledge and agree that, notwithstanding any concurrence by the Federal Government in or approval of the solicitation or award of the underlying Agreement, absent the express written consent by the Federal Government, the Federal Government is not a party to this Contract and shall not be subject to any obligations or liabilities to the Subrecipient, contractor, and subcontractor(s) or any other party (whether or not a party to that contract) pertaining to any matter resulting from the underlying Contract. The Subrecipient agrees to include the above clause in each subcontract financed in whole or in part with Federal assistance provided by the FTA. It is further agreed that the clause shall not be modified, except to identify the contractor or subcontractor(s) who will be subject to its provisions.

18. Notice to Third Party Participants.

Federal requirements that apply to the Subrecipient or the award, the accompanying underlying Agreement, and any amendments thereto may change due to changes in Federal law, regulation, other requirements, or guidance, or changes in the Subrecipient's underlying Agreement including any information incorporated by reference and made part of that underlying Agreement; and

Applicable changes to those Federal requirements will apply to each third-party agreement and parties thereto at any tier.

19. Notification to the FTA.

If a current or prospective legal matter that may affect the Federal Government emerges, the Subrecipient must promptly notify the FTA Chief Counsel and the FTA Regional Counsel for the Region in which the Subrecipient is located. The Subrecipient must include a similar notification requirement in its third-party agreements and must require each third-party participant to include an equivalent provision in its subagreements at every tier, for any agreement that is a "covered transaction" according to 2 CFR §§ 180.220 and 1200.220.

- A. The types of legal matters that require notification include, but are not limited to, a major dispute, breach, default, litigation, or naming the Federal Government as a party to litigation or a legal disagreement in any forum for any reason.
- B. Matters that may affect the Federal Government include, but are not limited to, the Federal Government's interests in the Award, the accompanying underlying Agreement, and any amendments thereto, or the Federal Government's administration or enforcement of federal laws, regulations, and requirements.

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- C. The Subrecipient must promptly notify the USDOT Inspector General in addition to the FTA Chief Counsel or Regional Counsel for the Region in which the Subrecipient is located, if the Subrecipient has knowledge of potential fraud, waste, or abuse occurring on a project receiving assistance from FTA. The notification provision applies if a person has or may have submitted a false claim under the False Claims Act, 31 U.S.C. § 3729 *et seq.*, or has or may have committed a criminal or civil violation of law pertaining to such matters as fraud, conflict of interest, bribery, gratuity, or similar misconduct. This responsibility occurs whether the Project is subject to this Agreement or another agreement between the Subrecipient and FTA, or an agreement involving a principal, officer, employee, agent, or Third-Party Participant of the Subrecipient. It also applies to contractors and subcontractor(s) at any tier. Knowledge, as used in this paragraph, includes, but is not limited to, knowledge of a criminal or civil investigation by a Federal, State, or local law enforcement or other investigative agency, a criminal indictment or civil complaint, or probable cause that could support a criminal indictment, or any other credible information in the possession of the Subrecipient.

20. Program Fraud and False or Fraudulent Statements and Related Acts.

The Subrecipient acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801 *et seq.* and USDOT regulations, “Program Fraud Civil Remedies,” 49 CFR Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying Agreement, the Subrecipient certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying Agreement or the FTA-assisted project for which this Agreement work is being performed. In addition to other penalties that may be applicable, the Subrecipient further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Subrecipient to the extent the Federal Government deems appropriate.

The Subrecipient also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by the FTA under the authority of 49 U.S.C. chapter 53, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5323(l) on the Subrecipient, to the extent the Federal Government deems appropriate.

The Subrecipient agrees to include the above two (2) clauses in each subcontract financed in whole or in part with Federal assistance provided by the FTA. It is further agreed that the clauses shall not be modified, except to identify the subcontractor who will be subject to the provisions.

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21. Prohibition on Certain Telecommunications and Video Surveillance Service or Equipment.

- A.** Subrecipients are prohibited from obligating or expending loan or grant funds to:
- (i)** Procure or obtain;
 - (ii)** Extend or renew a contract to procure or obtain; or
 - (iii)** Enter into a contract (or extend or renew a contract) to procure or obtain equipment, services, or systems that use covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. As described in Public Law 115-232, Section 889, covered telecommunications equipment is telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities).
 - (a)** For the purpose of public safety, security of government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities).
 - (b)** Telecommunications or video surveillance services provided by such entities or using such equipment.
 - (c)** Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of the National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.
- B.** In implementing the prohibition under Public Law 115-232, Section 889, Subsection (f), Paragraph (1), heads of executive agencies administering loan, grant, or subsidy programs shall prioritize available funding and technical support to assist affected businesses, institutions, and organizations as is reasonably necessary for those affected entities to transition from covered communications equipment and services, to procure replacement equipment and services, and to ensure that communications service to users and customers is sustained.

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C. See Public Law 115-232, section 889 for additional information.

D. See also 2 CFR § 200.471.

22. Prompt Payment.

The Subrecipient is required to pay its contractor(s) performing work related to this Agreement for satisfactory performance of that work no later than thirty (30) days after the Subrecipient's receipt of payment for that work. In addition, the Subrecipient is required to return any retainage payments to the contractor within thirty (30) days after the contractor's work related to this Agreement is satisfactorily completed.

The Subrecipient must promptly notify WYDOT whenever a DBE subcontractor performing work related to this agreement is terminated or fails to complete its work and must make good faith efforts to engage another DBE subcontractor to perform at least the same amount of work. The Subrecipient may not terminate any DBE subcontractor and perform that work through its own forces or those of an affiliate without prior written consent of WYDOT.

23. Public Transportation Employee Protective Arrangements.

The Subrecipient agrees to comply with the following employee protective arrangements of 49 U.S.C. § 5333(b):

- A. **U.S. Department of Labor Certification.** Under this Agreement or any Amendments thereto that involve public transportation operations that are supported with Federal assistance, a certification issued by U.S. DOL is a condition of the Agreement.
- B. **Special Warranty.** When the Agreement involves public transportation operations and is supported with federal assistance appropriated or made available for 49 U.S.C § 5311, U.S. DOL will provide a Special Warranty for its Award, including its Award of Federal assistance under the Tribal Transit Program. The U.S. DOL Special Warranty is a condition of the contract.
- C. **Special Arrangements.** The conditions of 49 U.S.C. § 5333(b) do not apply to contractors providing public transportation operations pursuant to 49 U.S.C. § 5310. The FTA reserves the right to make case-by-case determinations of the applicability of 49 U.S.C. § 5333(b) for all transfers of funding authorized under Title 23, United States Code (flex funds), and make other exceptions as it deems appropriate, and, in those instances, any special arrangements required by the FTA will be incorporated herein as required.

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24. Safe Operation of Motor Vehicles.

- A. Seat Belt Use.** The Subrecipient is encouraged to adopt and promote on-the-job seat belt use policies and programs for its employees and other personnel that operate company-owned vehicles, company rented vehicles, or personally operated vehicles. The terms “company-owned” and “company-leased” refer to vehicles owned or leased by the Subrecipient.
- B. Distracted Driving.** The Subrecipient agrees to adopt and enforce workplace safety policies to decrease crashes caused by distracted drivers, including policies to ban text messaging while using an electronic device supplied by an employer, and driving a vehicle the driver owns or rents, a vehicle Subrecipient owns, leases, or rents, or a privately-owned vehicle when on official business in connection with the work performed under this Agreement.

25. School Bus Operations.

- A.** The Subrecipient agrees to comply with 49 U.S.C. § 5323(f), and 49 CFR Part 604, and not engage in school bus operations using federally funded equipment or facilities in competition with private operators of school buses, except as permitted under:
 - (i)** Federal transit laws, specifically 49 U.S.C. § 5323(f);
 - (ii)** FTA regulations, “School Bus Operations,” 49 CFR part 605;
 - (iii)** Any other Federal School Bus regulations; or
 - (iv)** Federal guidance, except as FTA determines otherwise in writing.
- B.** If Subrecipient violates this school bus Agreement, the FTA may:
 - (i)** Bar the Subrecipient from receiving Federal assistance for public transportation; or
 - (ii)** Require the Subrecipient to take such remedial measures as the FTA considers appropriate.
- C.** When operating exclusive school bus service under an allowable exemption, the Subrecipient may not use federally funded equipment, vehicles, or facilities.
- D.** The Subrecipient should include the substance of this clause in each subcontract or purchase under this Agreement that may operate public transportation services.

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26. Substance Abuse Requirements.

The Subrecipient agrees to establish and implement a drug and alcohol testing program that complies with 49 CFR Part 655 (Part 655), produce any documentation necessary to establish its compliance with Part 655, and permit any authorized representative of the USDOT or its operating administrations, the State Oversight Agency, or WYDOT, to inspect the facilities and records associated with the implementation of the drug and alcohol testing program as required under Part 655 and review the testing process. The Subrecipient further agrees to annually certify its compliance with Part 655 and to submit the Management Information System (MIS) reports to WYDOT.

27. Termination.

- A. Termination for Convenience (General Provision).** WYDOT may terminate this Agreement, in whole or in part, at any time by written notice to the Subrecipient when it is in WYDOT's best interest. The Subrecipient shall be paid its costs, including contract close-out costs, and profit on work performed up to the time of termination.

The Subrecipient shall promptly submit its termination claim to WYDOT to be paid to the Subrecipient. If the Subrecipient has any property in its possession belonging to WYDOT, the Subrecipient will account for the same, and dispose of it in the manner WYDOT directs.

- B. Termination for Default [Breach or Cause] (General Provision).** If the Subrecipient does not deliver supplies in accordance with the Agreement delivery schedule, or if the contract is for services, the Subrecipient fails to perform in the manner called for in the Agreement, or if the Subrecipient fails to comply with any other provisions of the Agreement, WYDOT may terminate this Agreement for default. Termination shall be effected by serving a Notice of Termination on the Subrecipient setting forth the manner in which the Subrecipient is in default. The Subrecipient will be paid only the Agreement price for supplies delivered and accepted, or services performed in accordance with the manner of performance set forth in the Agreement. If it is later determined by WYDOT that the Subrecipient had an excusable reason for not performing, such as a strike, fire, or flood, events which are not the fault of or are beyond the control of the Subrecipient, WYDOT after setting up a new delivery of performance schedule, may allow the Subrecipient to continue work, or treat the termination as a Termination for Convenience.

- C. Opportunity to Cure (General Provision).** WYDOT, in its sole discretion may, in the case of a termination for breach or default, allow the Subrecipient ten (10) days to cure the defect. In such case, the Notice of Termination will state the time period in which cure is permitted and other appropriate conditions.

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If the Subrecipient fails to remedy, to WYDOT's satisfaction, the breach or default of any of the terms, covenants, or conditions of this Agreement within ten (10) days after receipt by the Subrecipient of written notice from WYDOT setting forth the nature of said breach or default, WYDOT shall have the right to terminate the Agreement without any further obligation to Subrecipient. Any such termination for default shall not in any way operate to preclude WYDOT from also pursuing all available remedies against the Subrecipient and its sureties for said breach or default.

- D. Waiver of Remedies for any Breach.** In the event that WYDOT elects to waive its remedies for any breach by the Subrecipient of any covenant, term or condition of this Agreement, such waiver by WYDOT shall not limit WYDOT's remedies for any succeeding breach of that or of any other covenant, term, or condition of this Agreement.
- E. Termination for Convenience (Professional or Transit Service Contracts).** WYDOT, by written notice, may terminate this Agreement, in whole or in part, when it is in WYDOT's interest. If this Agreement is terminated, WYDOT shall be liable only for payment under the payment provisions of this Agreement for services rendered before the effective date of termination.
- F. Termination for Default (Supplies and Service).** If the Subrecipient fails to deliver supplies or to perform the services within the time specified in this Agreement or any extension, or if the Subrecipient fails to comply with any other provisions of this Agreement, WYDOT may terminate this Agreement for default. WYDOT shall terminate by delivering to the Subrecipient a Notice of Termination specifying the nature of the default. The Subrecipient will only be paid the Agreement price for supplies delivered and accepted, or services performed in accordance with the manner or performance set forth in this Agreement. If, after termination for failure to fulfill contract obligations, it is determined that the Subrecipient was not in default, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of WYDOT.
- G. Termination for Default (Transportation Services).** If the Subrecipient fails to pick up the commodities or to perform the services, including delivery services, within the time specified in this Agreement or any extension, or if the Subrecipient fails to comply with any other provisions of this Agreement, WYDOT may terminate this Agreement for default. WYDOT shall terminate by delivering to the Subrecipient a Notice of Termination specifying the nature of default. The Subrecipient will only be paid the Agreement price for services performed in accordance with the manner of performance set forth in this Agreement.

If this Agreement is terminated while the Subrecipient has possession of WYDOT goods, the Subrecipient shall, upon direction of WYDOT, protect and preserve the goods until surrendered to WYDOT or its agent. The Subrecipient and WYDOT

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shall agree on payment for the preservation and protection of goods. Failure to agree on an amount will be resolved under the Dispute clause.

If, after termination for failure to fulfill contract obligations, it is determined that the Subrecipient was not in default, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of WYDOT.

H. Termination for Default (Construction). If the Subrecipient refuses or fails to prosecute the work or any separable part, with the diligence that will ensure its completion within the time specified in this Agreement or any extension or fails to complete the work within this time, or if the Subrecipient fails to comply with any other provision of this Agreement, WYDOT may terminate this Agreement for default. WYDOT shall terminate by delivering to the Subrecipient a Notice of Termination specifying the nature of the default. In this event, WYDOT may take over the work and complete it by Agreement or otherwise, and may take possession of and use any materials, appliances, and plants on the work site necessary for completing the work. The Subrecipient and its sureties shall be liable for any damage to WYDOT resulting from the Subrecipient's refusal or failure to complete the work within the specified time, whether or not the Subrecipient's right to proceed with the work is terminated. This liability includes any increased costs incurred by WYDOT in completing the work. The Subrecipient's right to proceed shall not be terminated nor shall the Subrecipient be charged with damages under this clause if:

- (i) The delay in completing the work arises from unforeseeable causes beyond the control and without the fault or negligence of the Subrecipient. Examples of such causes include: acts of God, acts of WYDOT, acts of another contractor in the performance of an Agreement with WYDOT, epidemics, quarantine restrictions, strikes, freight embargoes; and
- (ii) The Subrecipient, within ten (10) days from the beginning of any delay, notifies WYDOT in writing of the causes of delay. If, in the judgment of WYDOT, the delay is excusable, the time for completing the work shall be extended. The judgment of WYDOT shall be final and conclusive for the parties, but subject to appeal under the Disputes clause(s) of this Agreement.
- (iii) If, after termination of the Subrecipient's right to proceed, it is determined that the Subrecipient was not in default or that the delay was excusable, the rights and obligations of the parties will be the same as if the termination had been issued for the convenience of WYDOT.

I. Termination for Convenience or Default (Architect and Engineering). WYDOT may terminate this Agreement in whole or in part, for WYDOT's convenience or because of the failure of the Subrecipient to fulfill the Agreement obligations. WYDOT shall terminate by delivering to the Subrecipient a Notice of

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Termination specifying the nature, extent, and effective date of the termination. Upon receipt of the notice, the Subrecipient shall (1) immediately discontinue all services affected (unless the notice directs otherwise), and (2) deliver to WYDOT's Local Government Coordination (LGC) Office all data, drawings, specifications, reports, estimates, summaries, and other information and materials accumulated in performing this Agreement, whether completed or in process. WYDOT has a royalty-free, nonexclusive, and irrevocable license to reproduce, publish or otherwise use all such data, drawings, specifications, reports, estimates, summaries, and other information and materials.

If the termination is for the convenience of WYDOT, WYDOT's LGC Office shall make an equitable adjustment in the Agreement price but shall allow no anticipated profit on unperformed services.

If the termination is for failure of the Subrecipient to fulfill the Agreement obligations, WYDOT may complete the work by Agreement or otherwise and the Subrecipient shall be liable for any additional cost incurred by WYDOT.

If, after termination for failure to fulfill Agreement obligations, it is determined that the Subrecipient was not in default, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of WYDOT.

J. Termination for Convenience or Default (Cost-Type Contracts). WYDOT may terminate this Agreement, or any portion of it, by serving a Notice of Termination on the Subrecipient. The notice shall state whether the termination is for convenience of WYDOT or for the default of the Subrecipient. If the termination is for default, the notice shall state the manner in which the Subrecipient has failed to perform the requirements of the Agreement. The Subrecipient shall account for any property in its possession paid for from funds received from WYDOT, or property supplied to the Subrecipient by WYDOT. If the termination is for default, WYDOT may fix the fee, if the Agreement provides for a fee, to be paid the Subrecipient in proportion to the value, if any, of work performed up to the time of termination. The Subrecipient shall promptly submit its termination claim to WYDOT and the parties shall negotiate the termination settlement to be paid the Subrecipient.

If the termination is for the convenience of WYDOT, the Subrecipient shall be paid its agreement close-out costs, and a fee, if the Agreement provided for payment of a fee, in proportion to the work performed up to the time of termination.

If, after serving a Notice of Termination for Default, WYDOT determines that the Subrecipient has an excusable reason for not performing, WYDOT, after setting up a new work schedule, may allow the Subrecipient to continue work, or treat the termination as a Termination for Convenience.

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28. Violation and Breach of Contract.

- A. Disputes.** Disputes arising in the performance of this Agreement that are not resolved by agreement of the parties shall be decided in writing by the authorized representative of WYDOT. This decision shall be final and conclusive unless within ten (10) days from the date of receipt of its copy, the Subrecipient mails or otherwise furnishes a written appeal to WYDOT's authorized representative. In connection with any such appeal, the Subrecipient shall be afforded an opportunity to be heard and to offer evidence in support of its position. The decision of WYDOT's authorized representative shall be binding upon the Subrecipient and the Subrecipient shall abide by the decision.
- B. Performance During Dispute.** Unless otherwise directed by WYDOT's authorized representative, Subrecipient shall continue performance under this Agreement while matters in dispute are being resolved.
- C. Claims for Damages.** Should either party to the Agreement suffer injury or damage to person or property because of any act or omission of the party or of any of his employees, agents or others for whose acts he is legally liable, a claim for damages therefore shall be made in writing to such other party within a reasonable time after the first observance of such injury or damage.
- D. Remedies.** Unless this Agreement provides otherwise, all claims, counterclaims, disputes and other matters in question between WYDOT's authorized representative and Subrecipient arising out of or relating to this Agreement or its breach will be decided by arbitration if the parties mutually agree, or in a court of competent jurisdiction within the State of Wyoming.
- E. Rights and Remedies.** Duties and obligations imposed by the Agreement documents and the rights and remedies available thereunder shall be in addition to and not a limitation of any duties, obligations, rights, and remedies otherwise imposed or available by law. No action or failure to act by WYDOT or the Subrecipient shall constitute a waiver of any right or duty afforded any of them under the Agreement, nor shall any such action or failure to act constitute an approval of or acquiescence in any breach thereunder, except as may be specifically agreed in writing.

29. Whistleblower Protection.

In accordance with 41 U.S.C. § 4712 and 2 CFR § 200.217, an employee of a subrecipient or contractor may not be discharged, demoted, or otherwise discriminated against as a reprisal for making a "protected disclosure".

- A. Definition of Protected Disclosure:** A disclosure is protected if the employee reasonably believes the information is evidence of:

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- (i) Gross mismanagement or a gross waste of Federal funds.
- (ii) An abuse of authority relating to a Federal contract or grant.
- (iii) A substantial and specific danger to public health or safety.
- (iv) A violation of law, rule, or regulation related to a Federal contract or grant.

B. Authorized Recipients of Disclosures: For statutory protection to apply, the employee must disclose the information to one of the following:

- (i) A Member of Congress or a representative of a congressional committee.
- (ii) An Office of Inspector General (OIG).
- (iii) The Government Accountability Office (GAO).
- (iv) A Federal employee responsible for contract/grant oversight at the relevant agency (e.g., FTA).
- (v) An authorized official of the DOJ or other law enforcement agency.
- (vi) A court or grand jury.
- (vii) A management official or employee of the contractor or subrecipient who has responsibility for investigating, discovering, or addressing misconduct.

C. Mandatory Notification: The Subrecipient and its contractors are statutorily required to inform their employees and subcontractors in writing of these whistleblower rights and protections under 41 U.S.C. § 4712.

D. Flow-Down: The Subrecipient shall include the substance of this clause in all third-party contracts and subcontracts at every tier.

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